

He is bound to enter it with the Register within a certain time. If he neglects to do that, the Plaintiff may set it down.

[86] Mr. Owen, in reply to the proposal to waive the exceptions without prejudice, referred to *Dolder v. The Bank of England* (10 Ves. 284); to shew the strictness as to permitting any amendment of Exceptions, unless a case of clear mistake; and that must be rectified upon the Record.

Nov. 4th. The Lord Chancellor [Erskine]. The case of *The London Assurance v. The East India Company* (3 P. Will. 325) is not inconsistent with Lord Redesdale's proposition; which appears to me to be supported also by the reason of the thing. The rule, established in that case, that the Plaintiff cannot except pending the demurrer, might have reference to the understood practice of the Court, that he could not except without admitting the validity of the demurrer; the foundation of which seems to be, that dealing with the answer, as if it was proper, except as to the particular subject of exception, is an implied admission of the validity of the demurrer.

But in this case the Plaintiff is entitled, according to the offer he has made, to withdraw the exceptions, paying the costs; and if the demurrer shall be allowed upon argument, he may again except; and put in the same exceptions. The principle is clear upon *Dolder v. The Bank of England*: the exceptions having been taken upon a mistake as to the practice, without any intention of waiving the demurrer. The mode, in which the error is to be corrected, should be in the [87] discretion of the Court. Amendment may be permitted; if it can be done without disfiguring the Record: but if the amendments must be so considerable as to blot and deface the Record, as in that instance, exceptions taken from one Bill instead of another, the Record should be taken off the file; and a new Record put upon it.

The Motion was therefore refused: the *Solicitor-General* undertaking to withdraw the Exceptions, and pay the costs.

WHITE v. WILSON. Aug. 5th, Nov. 12th, 1806.

[See *Wilson v. Beddard*, 1841, 12 Sim. 32; *Waters v. Waters*, 1848, 2 De G. & S. 619; *M'Gregor v. Topham*, 1850, 3 H. L. C. 154.]

Heir at Law, Defendant, desiring an Issue upon a Will in which he failed, entitled to his costs in Equity. No costs on either side as to the Issue; ordered to pay Costs of a groundless Motion, for a New Trial.

The Bill in this cause was filed by devisees under the Will of Lord *Chedworth*, dated in 1804, to have the Will established, and the trusts carried into execution. An issue, *Devisavit vel non*, was desired by the heirs at law, suggesting incompetency in the testator. Upon the trial of that issue in the Court of King's Bench, a verdict was found, establishing the Will upon very clear and strong evidence of capacity, as to the conduct of the testator; particularly as a Magistrate, acting as Chairman at the Quarter Sessions; and in the House of Lords; opposed only by some circumstances of eccentricity, and singularity in dress; which came out principally upon the cross examination: the heir examining only one witness. A motion was made by the heir for a new trial upon a suggestion of the expectation of farther evidence; and an affidavit by Dr. Parr; expressing his opinion, that the testator had not been of a perfectly sound mind. [88] from a propensity to insanity, perhaps subsisting from his birth, and promoted by certain circumstances of his life. On the other side several letters from Dr. Parr to the testator were produced, consulting his Lordship upon subjects of literature, expressing in strong terms an opinion of his good sense and talents; and in one instance recommending a clergyman for a living in his Lordship's gift; the offer of which Dr. Parr declined for himself.

Mr. Perceval, Mr. Richards, and Mr. Leach, in support of the Motion for a new trial, observed, that, if the directions should be given upon this verdict, the effect would be a perpetual injunction after a single trial; though farther evidence was expected; and the right could never be bound by a single ejectionment.

The Attorney-General [Piggott], the Solicitor-General [Romilly], Mr. Fonblanque, Mr. Bell, and Mr. Whishaw, opposed the Motion.

The Lord Chancellor [Erskine]. I should be very sorry to find a rule in this Court,